

92. Defendant's conduct constitutes a violation of California Civil Code section 1708.89, which prohibits the intentional distribution of personal identifying information with the intent to incite or threaten physical harm or harassment, or with knowledge that the information will be used to commit such acts.

(FAC ¶¶ 86-92.)

Defendant argues the doxing claim fails because sending the video to university administrators through a confidential reporting channel does not constitute doxing. As to the disclosure to the university, the Court agrees. That disclosure does not satisfy the statutory requirements of intent to place Plaintiff in reasonable fear for his physical safety or purpose of imminently causing unwanted physical contact, injury, or harassment by a third party.

As for dissemination to the student body, Defendant argues the allegation is fatally uncertain, that Plaintiff's name and university affiliation are not private information because he was wearing a Chapman sweatshirt, that there is no allegation that Defendant forwarded the video to unknown students with intent to place Plaintiff in fear for his safety, that there is no allegation that Plaintiff was actually harassed by others, and that the EthicsPoint complaints filed by unknown students do not constitute unlawful action.

Unlike disclosure to university administrators, distribution of a video depicting Plaintiff using a racial slur to fellow students raises a reasonable inference that the disclosure was made for the purpose of causing Plaintiff unwanted harassment by a third party. Whether that distribution was likely to incite unlawful action is a factual question that cannot be resolved on demurrer.

The allegations supporting the seventh cause of action are minimally sufficient to state a cause of action arising under the anti-doxing statute. The demurrer to this cause of action is therefore **overruled**.

2. 9:00 AM CASE NUMBER: C23-01442

CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ

***FURTHER CASE MANAGEMENT CONFERENCE CONT'D FROM 2/24 TO TRAIL MOTION RE:
RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25 TENTATIVE RULING GRANTING ARCH
INSURANCE COMPANY'S MOTION FOR LEAVE TO FILE A COMPLAINT IN INTERVENTION
FILED BY:**

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Line 11. This CMC is continued to May 6, 2026 at 9:00 a.m. No appearance is required on March 25, 2026.

3. 9:00 AM CASE NUMBER: C24-03465

CASE NAME: LOURDES DE LA MORA VS. JUAN GALLEGOS

***FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:**

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 17, below. If Line 17 is unopposed, then this CMC will be continued to September 22, 2026 at 8:30 a.m.

4. 9:00 AM CASE NUMBER: C22-01790

CASE NAME: KATHERINE STAUDT VS. DOES 1 TO 50

***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL HEARING ON MOTION FOR DISCOVERY (TERMINATING SANCTIONS AGAINST PLAINTIFF)**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 26. If Line 26 is unopposed, then this CMC will be continued to September 22, 2026 at 8:30 a.m.

5. 9:00 AM CASE NUMBER: C24-02203

CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY

***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL HEARING ON DEMURRER 2ND AMENDED COMPLAINT**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 16. Line 16 is vacated. This CMC is vacated. No appearance is required on March 25, 2026.

6. 9:00 AM CASE NUMBER: C23-02791

CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY DEFENSE COUNSEL YULI KAPLUNOVSKY SHOULD NOT BE HELD IN CONTEMPT FOR FAILURE TO APPEAR AT THE 8/5/25 FURTHER CASE MANAGEMENT CONFERENCE AND TRIAL SETTING CONFERENCE (CONTINUED FROM 12/16/25)

FILED BY:

TENTATIVE RULING:

This case is also scheduled for hearings in Lines 8, 12, and 13. The Court scheduled an Order to Show cause as to why Defendant JRT Freight LLC and Luis Martinez's counsel, Eliahu Kaplunovsky, should not be held in contempt for failing to appear at the CMC on August 5, 2025 and the Trial Setting Conference on December 16, 2025. The Court notes that Counsel Kaplunovsky had filed a Motion to be relieved as counsel on December 2, 2025. The Court discharges this Order to Show Cause.

7. 9:00 AM CASE NUMBER: N25-2112

CASE NAME: AMAN POHYAR VS. IBRAHIM SHARIFF

***EX PARTE PLAINTIFF'S EX PARTE APPLICATION FOR ORDER SHORTENED TIME DUE TO; DEFT AT ALL TIME NEVER PAID THE PROPERTY TAXES FOR FIVE YEARS**

FILED BY: POHYAR, AMAN

TENTATIVE RULING:

This tentative ruling applies to Lines 7 and 23. Plaintiff Aman Pohayr's ("Plaintiff") Motion to Set Hearing for an Unlawful Detainer Action is denied without prejudice. Plaintiff's *ex parte* application to set a hearing to require Defendant to pay property taxes is denied without prejudice.

Defendant Ibrahim Shariff has not made an appearance in this case, and has filed a Notice of Bankruptcy on December 4, 2025. The Notice of Bankruptcy operates to stay these proceedings, pending discharge. This matter is stayed pending discharge of Defendant Ibrahim Shariff's bankruptcy case. The Court has already set a Bankruptcy Review Hearing for September 4, 2026. Absent any other intervening hearings, the Parties are ordered to file a case management conference statement